



CHAPTER 43.

An Act to confer on the High Court in England and the Court of Session in Scotland, and to provide for conferring on the High Court in Northern Ireland, temporary jurisdiction in certain matrimonial causes where the relevant marriage took place on or after the third day of September, nineteen hundred and thirty-nine, and to provide for the recognition of certain decrees and orders in matrimonial causes in all British courts.

[17th November 1944.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

- 1.—(1) In the case of marriages to which this section applies—
 - (a) the High Court in England shall have jurisdiction in and in relation to proceedings for divorce or for nullity of marriage as if both parties were at all material times domiciled in England ;
 - (b) section one of the Matrimonial Causes Act, 1937 (which restricts the presentation of petitions for divorce during the first three years after marriage) shall not apply :

Extension of jurisdiction of High Court to certain marriages irrespective of domicile.
1 Edw. 8. &
1 Geo. 6. c. 57.

Provided that this subsection shall not apply in relation to any proceedings for divorce or for nullity of marriage unless those proceedings were commenced not later than five years after the appointed day.

(2) The marriages to which this section applies are marriages celebrated on or after the third day of September, nineteen hundred and thirty-nine, but before the appointed day, where the husband was, at the time of the marriage, domiciled outside the United Kingdom, and the wife was, immediately before the marriage, domiciled in England :

Provided that this section shall not apply to any marriage if, since the celebration thereof, the parties thereto have at any time resided together in the country in which the husband was domiciled at the time of the residence, and for the purposes of this proviso the whole of the United States of America, the whole of India and the whole of any British possession outside India shall each be treated as one country.

(3) This section shall not extend or alter the jurisdiction of the High Court in, or in relation to, any proceedings for divorce or for nullity of marriage where, at the commencement of those proceedings, the parties are domiciled anywhere in the United Kingdom.

Extension of
jurisdiction
of Court of
Session to
certain
marriages
irrespective
of domicile.

2.—(1) In the case of marriages to which this section applies the Court of Session shall have jurisdiction in and in relation to proceedings for divorce or for nullity of marriage as if both parties were at all material times domiciled in Scotland :

Provided that this subsection shall not apply in relation to any such proceedings unless they were commenced not later than five years after the appointed day.

(2) The marriages to which this section applies are marriages contracted or celebrated on or after the third day of September, nineteen hundred and thirty-nine, but before the appointed day, where the husband was, at the time of the marriage, domiciled outside the United Kingdom, and the wife was, immediately before the marriage, domiciled in Scotland :

Provided that this section shall not apply to any marriage if, since it was contracted or celebrated, the parties thereto have at any time resided together in the country in which the husband was domiciled at the time of the residence, and for the purposes of this proviso the whole of the United States of America, the whole of India and the whole of any British possession outside India shall each be treated as one country.

(3) This section shall not extend or alter the jurisdiction of the Court of Session in, or in relation to, any proceedings for divorce or for nullity of marriage where, at the commencement of those proceedings, the parties are domiciled anywhere in the United Kingdom.

Power of
Parliament of
Northern
Ireland to
make similar
provision.
10 & 11 Geo 5.
c. 67.

3. The provision in section four of the Government of Ireland Act, 1920, that the Parliament of Northern Ireland shall not have power to make laws in respect of matters arising from a state of war shall not be construed as preventing the Parliament of Northern Ireland from making laws temporarily conferring on the High Court in Northern Ireland jurisdiction in matrimonial causes in the case of marriages where—

(a) the marriage took place during a limited period beginning with the third day of September, nineteen hundred and thirty-nine; and

cease to have effect, but without prejudice to the validity of anything done thereunder in the meantime or to the making of a new Order.

In reckoning the said period of forty days, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

56 & 57 Vict.
c. 66.

Section one of the Rules Publication Act, 1893, shall not apply to any Order in Council made under this section.

(3) This section applies—

- (a) in relation to any British protectorate and any territory in respect of which a mandate has been accepted by His Majesty and is being exercised by His Majesty's Government in the United Kingdom, as it applies in relation to a colony ;
- (b) in relation to any territory in respect of which a mandate has been accepted by His Majesty and is being exercised by the Government of such a Dominion as aforesaid, as if it were part of that Dominion.

Interpretation. 5.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say—

- “ the appointed day ” means such day as His Majesty may by Order in Council appoint ;
- “ Dominion court ” means a court of, or of any Province or State forming part of, any Dominion within the meaning of the Statute of Westminster, 1931 ; and
- “ marriage ” includes a purported marriage which was void ab initio, and “ husband ” and “ wife ” shall be construed accordingly.

(2) The jurisdiction conferred by or under this Act on any court shall be concurrent with any jurisdiction as respects the same matters which would, apart from this Act, be exercisable by any other court.

Short title.

6. This Act may be cited as the *Matrimonial Causes (War Marriages) Act, 1944.*

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- (b) the husband was, at the time of the marriage, domiciled outside the United Kingdom ; and
- (c) the wife was, immediately before the marriage, domiciled in Northern Ireland.

4.—(1) The validity of any decree or order made either—

- (a) by virtue of this Act ; or
- (b) by virtue of any such law made by the Parliament of Northern Ireland as is mentioned in the last preceding section ; or
- (c) by virtue of any law passed or made by any legislature or other authority having power to make laws with respect to matrimonial causes for any part of His Majesty's dominions outside the United Kingdom, or for any British protected state, which is declared by Order in Council to be a law substantially corresponding to the provision made as respects Great Britain by the preceding provisions of this Act,

Certain decrees and orders to be generally recognised in British courts.

shall, by virtue of this Act, be recognised in all British courts, whether within or without His Majesty's dominions, other than Dominion courts :

Provided that—

- (i) as respects the courts of any such part of His Majesty's dominions outside the United Kingdom (not being Dominion courts) as may be specified by Order in Council, this subsection shall have effect subject to such modifications as may be so specified or, if the Order in Council so provides, shall not have effect ;
- (ii) an Order in Council shall not be made under paragraph (c) of this subsection with respect to any law of any Dominion within the meaning of the Statute of Westminster, 1931, or of any Province or State forming part of such a Dominion, or of any British protected state, unless his Majesty is satisfied that adequate provision is made by the law of that Dominion, Province or State forming part of a Dominion, or British protected state, for the recognition by the courts thereof of the decrees and orders which are by virtue of this subsection to be recognised to the extent provided for by this subsection in British courts other than Dominion courts.

(2) Every Order in Council made under this section shall be laid as soon as may be before Parliament, and if an address is presented to His Majesty by either House of Parliament, within a period of forty days beginning with the day on which any such Order is laid before it, praying that the Order may be annulled, His Majesty in Council may annul the Order and it shall thereupon